

Uttam Singh v. State of U.P.

Allahabad High Court · Division Bench · 15 May 2024 · 2024:AHC:87958-DB · WRIT - C No. - 14605 of 2024 ·
Disposed of; fresh s.126 order after hearing as per Supply Code.

HEADNOTE

Where the licensee withdrew a Section 126 recovery certificate and final assessment and undertook to pass a fresh order after hearing, the writ was disposed of with liberty to proceed strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2006.

FACTUAL SUMMARY

The petitioner, Uttam Singh, filed a writ against a recovery certificate dated 26 October 2023 issued by the electricity authorities for dues arising from an assessment under Section 126 of the Electricity Act, 2003. When the petition was taken up, counsel for the Electricity Department stated that the recovery certificate and the order of final assessment had been withdrawn, and that a fresh order would be passed after giving the petitioner an opportunity of hearing. An affidavit to that effect was filed.

HOLDING-UNITS

INTERPLAY · EA2003::126

s.126 recovery withdrawn; fresh order after hearing

HOLDING

On the licensee's statement that the Section 126 recovery certificate dated 26.10.2023 and the final assessment had been withdrawn, the writ was disposed of with liberty to pass a fresh order after opportunity of hearing, strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2006.

¶ 3-5

FLAG Court referred to U.P. Electricity Supply Code, 2006; the applicable Code is 2005.

PRINCIPLE TAGS

s126-procedural-strictness-notice-and-hearing Where the licensee withdrew a Section 126 recovery certificate and final assessment and undertook to pass a fresh order after hearing, the writ was disposed of with liberty to proceed strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2006. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE WITHDRAWN S.126 FINAL ASSESSMENT AND RECOVERY CERTIFICATE DATED 26.10.2023

Department withdrew both; no merits adjudication. ¶ 4-5